

16.) Thus, Mr. Vu explicitly alleges that all of the protected activities alleged occurred *after* Ms. Huong Vu passed away.

The Court is aware of no authority providing that an estate may maintain a claim for elder abuse based on allegations that a defendant took, secreted, appropriated, obtained, or retained real or personal property of an elder *after* the elder's death. (See *Ring v. Harmon* (2021) 72 Cal.App.5th 844, 851.) ["No authority supports the notion that the personal representative of a probate estate, acting in that capacity, has standing to bring an elder abuse claim on behalf of a beneficiary of that estate"].)

Based on the foregoing, Mr. Eriksson fails to show that either the second or sixth cause of action arises out of the protected activities. For this reason, the Court does not have authority to strike paragraphs 14, 15, 16, and/or 18 pursuant to Section 425.16,

However, in light of the Court's ruling granting Mr. Eriksson's motion to strike the second through fifth causes of action, the finding that these allegations cannot, as a matter of law, support either of the remaining claims – the first and sixth causes of action – renders the allegations irrelevant. While the Court does not have authority to strike paragraphs 14, 15, 16, and/or 18 pursuant to Section 425.16, it does have authority to strike them pursuant to Code of Civil Procedure section 436 on grounds that they are irrelevant.

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Shirley Jo Kilgore v. Piner's Nursing Home

26CV001142

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO WRITTEN
DISCOVERY, SET ONE; REQUEST FOR SANCTIONS

APPEARANCE REQUIRED.

**PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30
a.m.**

Estate of Christopher Matthew Gillespie

19PR000227

FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR AND PETITION FOR ITS
SETTLEMENT AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: In light of the Supplemental Briefing and Request for Continuance, filed September 3, 2026, the matter is CONTINUED to October 13, 2026, at 8:30 a.m. in Dept. B. By October 6, 2026, Executor and Objector shall each, or jointly, file and serve supplemental briefing as to the status of the matter.

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In The Matter of The Ashe Family Trust

20PR000163